

# SECTOR-WISE IMPACT

## 1. HEALTHCARE

**Key Acts Amended:** Drugs & Cosmetics Act, Food Safety Act, Environment Protection Act  
**Impact:** Jail terms replaced by fines for technical lapses like labelling errors and storage issues  
**Beneficiaries:** Pharma, diagnostic, hospital, nutraceutical players

## 2. AGROCHEMICALS & FERTILISERS

**Key Acts Amended:** Insecticides Act, Fertiliser Control Order  
**Impact:** Reduces criminal liability for non-compliance on packaging, samples  
**Beneficiaries:** Agrochemical firms, fertiliser distributors

## 3. MSMEs & INDUSTRY

**Key Acts Amended:** Indian Boilers Act, Legal Metrology Act  
**Impact:** Decriminalises minor lapses like weight-label mismatches  
**Beneficiaries:** Small manufacturers, factory operators

## 4. ENVIRONMENT & POLLUTION

**Key Acts Amended:** Environment Protection Act, Air Act, Water Act  
**Impact:** Moves away from jail terms for first-time offences in cases such as non-compliance with emission norms  
**Beneficiaries:** Industrial units, factories

## 5. LOGISTICS & PORTS

**Key Acts Amended:** Indian Ports Act  
**Impact:** Replaces imprisonment with fines for non-reporting or paperwork delays  
**Beneficiaries:** Shipping firms, port operators

## 6. TELECOM & CONSUMER DEVICES

**Key Acts Amended:** Indian Telegraph Act  
**Impact:** Reduces penal exposure for network disruption or failure to report usage  
**Beneficiaries:** Telecom operators, tech platforms

## 7. FOOD PROCESSING

**Key Acts Amended:** FSSAI regulations  
**Impact:** Offences like mislabelling or composition errors attract civil fines instead of FIRs  
**Beneficiaries:** Packaged food and beverage companies

rules can run into trouble due to a lack of clarity or practical support.” He welcomes the Central Pollution Control Board’s updated biomedical waste rules and Central Drugs Standard Control Organisation’s standardisation push. “These efforts build public trust. But many labs still need SOPs, training, and tailored capacity building. Regulations should enable compliance, not just enforce it.”

The medical devices industry continues to call for a law separate from the Drugs Act. “We need a separate medical devices law. Penal provisions that apply to drugs don’t work for machines,” says Rajiv Nath, Forum Coordinator, AiMeD. He points out that without a non-criminal regulatory framework for devices—as envisioned in the National Health Policy 2017—India will struggle to attract investments in medical tech. While the government has introduced Medical Devices Rules, they still fall under the pre-Independence Drugs and Cosmetics Act; this was promised to be transitional. Attempts at reform, including a draft from NITI Aayog and a later committee, have failed to gain traction. “In most global markets, US, EU, UK, Canada, Singapore, medical devices are regulated independently of drugs,” says Nath.

## THE ROAD AHEAD

As part of the broader decriminalisation effort, the Jan Vishwas Act has also amended the Railways Act. Offences like begging—previously punishable by jail—will attract civil penalties. This could reduce courtroom burden while allowing authorities to focus on core enforcement and safety. “With Indian Railways increasingly opening to private players in freight and infrastructure, Jan Vishwas helps build investor confidence by ensuring that minor procedural lapses don’t result in criminal charges. It’s a step towards balancing enforcement with practicality,” says Vivek Mishra, Member, Advisory Board, All India Rail Safety Council.

The Jan Vishwas Bill, 2025—likely to be tabled in the Monsoon or Winter Session—will be key to testing the government’s commitment to regulatory reform. It also aims to expand digital compliance tools such as AI-led monitoring, voluntary disclosure platforms and sector-specific enforcement interfaces. **BT**

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